Congressional attention to abortion after *Dobbs*

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The Supreme Court's 2022 decision in *Dobbs* eliminated the federal constitutional right to abortion. Existing work examines how *Dobbs* reshaped voters' attitudes and candidates' campaign platforms. However, its effects on legislators' behavior remain unclear. We argue that legislators increased their attention to abortion after *Dobbs* only when gendered representational considerations and party-based electoral incentives aligned. These incentives converged for female Democrats, but female Republicans faced electoral risks in elevating abortion, and male legislators lacked a gender-based representational incentive. Therefore, we expect female Democrats to increase their attention to abortion after the decision relative to female Republicans, with no change among men. To test this argument, we identify abortion references in nearly 1.6M statements from U.S. House committee hearings. Difference-in-differences estimates leveraging variation in abortion references before and after *Dobbs* by party show no gender or party differences before the decision; after *Dobbs*, however, female Democrats durably increased their attention to abortion relative to female Republicans, with no change among male legislators.

Congress | gender | abortion | representation

On May 2, 2022, a draft opinion in *Dobbs v. Jackson Women's Health Organization* was leaked to the public. Two months later, the Supreme Court issued its official decision, overturning *Roe* and *Casey* and eliminating the federal constitutional right to abortion. In the wake of *Dobbs*, scholars have examined how the ruling affected voters' attitudes toward abortion and the Court (1–3), as well as candidates' campaign platforms (4). Existing evidence shows a sharp and durable partisan divergence: Republicans' trust in and perceived legitimacy of the Court increased, whereas Democrats' evaluations declined across these dimensions (1–3). The ruling also reshaped candidates' campaign platforms, with Democratic primary candidates increasingly emphasizing abortion while Republican primary candidates attempted to avoid the issue (4).

The extent to which *Dobbs* altered legislators' behavior remains unclear. We theorize that legislators increased their attention to abortion after *Dobbs* only when gendered representational considerations and party-based electoral incentives aligned. Theories of descriptive representation predict that female legislators are more likely than male legislators to prioritize gender-salient issues (5, 6), suggesting that female legislators have stronger incentives to increase attention to abortion after *Dobbs*, independent of their policy position (i.e., pro-choice or pro-life). Legislators also prioritize issues that serve their electoral interests (7). After *Dobbs*, Republican candidates deemphasized abortion on the campaign trail (4), likely because the issue became electorally costly—especially in states where abortion measures appeared on the ballot (8). Female Democrats, in contrast, faced incentives to elevate abortion. And although male legislators did share their parties' electoral incentives, they lacked the same gendered representational considerations. As a result, we expect abortion attention to rise when gendered representational considerations and partisan electoral incentives converge: female Democrats should increase their attention after *Dobbs* relative to female Republicans, with no change among male legislators.

We measure congressional attention to abortion using nearly 1.6 million statements made by legislators in committee hearings. Leveraging multiple difference-in-differences specifications, we estimate how abortion attention changed after *Dobbs* by party and gender. Before *Dobbs*, we find no systematic differences by gender or party. After the decision, however, female Democrats increased their abortion references by about two percentage points relative to female Republicans—a substantively meaningful effect that persists from the latter half of the 117th Congress (2022) through the 119th Congress (2025)—with no significant partisan shift among men.

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Author contributions: JML collected the congressional hearing data and trained the bigram classifier; MRD collected the news coverage data; JML and MRD conceptualized the paper, formulated the research design, analyzed the data, and wrote the paper.

The authors declare no competing interest.

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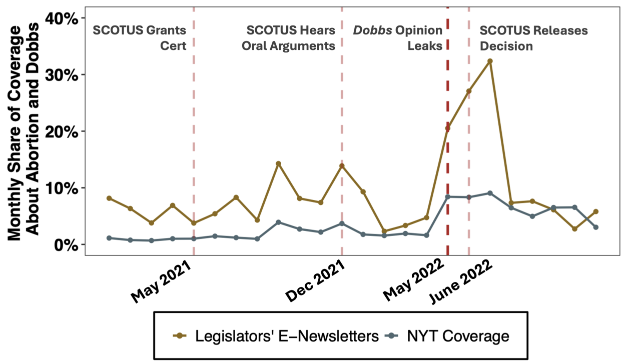

Fig. 1. Determining Treatment Date: NYT Coverage and Legislators' Newsletters Referencing Abortion Monthly share of congressional electronic newsletters sent to constituents (N = 25,680) and *New York Times* articles (N = 182,329), from January 2021 through December 2022 that references "abortion" or "*Dobbs v. Jackson*". Abortion coverage from both sources rose sharply after the leak, indicating that the disclosure of the draft opinion—not the final decision–informed legislators of the ruling.

Materials and Methods

Data. We identify whether nearly 1.6 million committee hearing statements drawn from 17,408 hearings in the U.S. House of Representatives across the 105th through the 119th Congresses reference abortion (9, 10). Our dataset includes all hearings in the 105th–118th Congresses and all hearings held on or before April 29, 2025, in the 119th Congress (the date of collection). To label statements, we employ a bigram dictionary classification method (10). First, we created a training set of randomly sampled statements ($n = 20{,}000$) and prompted GPT-5 to label whether each referenced abortion.[*] Human coders labeled a 2,000-statement subset of the training set, confirming that GPT-5 correctly classified abortion statements (AUC = 0.94)[†]. We then extracted abortion bigrams ($n = 1{,}829$)—two-word sequences that indicate abortion (e.g., `pro life`, `abortion ban`, `planned parenthood`)—from the positive training statements and used this dictionary to classify the full corpus.[‡] Comparing GPT-5-coded and bigram-predicted labels in a held-out validation set confirms that the classifier accurately identified abortion statements in the full corpus (AUC = 0.95).[§] In total, the bigram classifier identified 5,036 abortion statements. We construct two measures capturing the proportion of legislators' committee statements referencing abortion:

- ***Attention to Abortion (Pre-Post Dobbs)***: measures the proportion of a legislator's hearing statements that reference abortion before and after the *Dobb's* decision leaked.
- ***Attention to Abortion (by Term)***: measures the proportion of a legislator's hearing statements that reference abortion in each congressional term.

Difference-in-Differences (DiD) Design. We estimate DiD models with two specifications—(i) a pre–post model with legislator fixed effects and (ii) a two-way fixed effects (TWFE) model with legislator and congressional-term fixed effects—to assess how legislators' attention to abortion changed following *Dobbs*. In our design, *Dobbs* treated all legislators; the DiD estimand captures the *differential* within-legislator change in abortion attention by party from the pre- to post-*Dobbs* period, estimated separately by gender.[¶] The treatment date is May 2, 2022, when the draft opinion in *Dobbs* leaked. To confirm that legislators were treated by the leak rather than when the Court released its decision (June 24, 2022), we compiled the monthly share of *New York Times* (NYT) articles referencing "abortion" or "*Dobbs v. Jackson*," as well as the monthly share of legislators' e-newsletters referencing the same terms (12). NYT coverage of abortion captures when legislators were most likely to learn about the content of the *Dobbs* decision, while legislators' e-newsletters indicate whether legislators transmitted that information to constituents, offering behavioral evidence of treatment. If legislators were treated by the leaked decision, the initial spike in coverage and constituent communication should occur in May 2022. Figure 1 confirms this pattern: *NYT* abortion coverage rose to 8.4% in May (from 1.6% in April), and 24.5% of legislators' e-newsletters referenced abortion in May (up from 4.7% in April).

In the DiD models, the dependent variable is the proportion of a legislator's committee hearing statements that reference abortion. The independent variable is an interaction between a post-*Dobbs* indicator and a Democratic Party indicator. Models are estimated separately by gender. In the pre-post specification, each legislator contributes two observations: the proportion of statements referencing abortion before and after *Dobbs*. In the TWFE specification, the unit of analysis is at the legislator-term level, with both legislator and congressional-term fixed effects.

We estimate a TWFE DiD model alongside the pre–post specification, despite a single (non-staggered) treatment date, for two reasons. First, term fixed effects absorb cross-term differences in statement volume, which is necessary given that the pre–post model pools more pre-treatment terms (12) than post-treatment terms (3). Second, term fixed effects adjust for time-varying shocks across congressional terms that could confound pre–post estimates. With a single treatment date, our TWFE DiD is not subject to the heterogeneous-effects bias concerns that arise in staggered-adoption designs (13). Models are estimated with OLS and robust standard errors clustered by legislator.[‖]

The parallel trends assumption is satisfied for our research design. Figure 2 reports term-specific, pre-*Dobbs* TWFE DiD estimates of the Democratic–Republican gap in abortion-related statements (105th Congress as the reference). There are no statistically significant party differences by gender in any pre-*Dobbs* terms. We further demonstrate robustness with several additional checks—considering alternative treatment dates, a randomization-in-time placebo test, median pre-*Dobbs* differences by gender and party, a 16-month pre-treatment event study, and a lagged TWFE specification—detailed in the *SI Appendix* (13). All robustness checks confirm that parallel trends hold for our research design.

Results

Table 1 reports effects and 95% confidence intervals for both DiD model specifications; results are consistent across models. In the pre–post specification, female Republicans' share of statements referencing abortion decreases by 0.87 percentage points, while female Democrats' share increases by 1.32 percentage points, yielding a party-based difference among female legislators after *Dobb* of 2.19 percentage points ($p = 0.000$). In the TWFE model, the estimated difference is 0.8 percentage points ($p = 0.02$). Both of these models suggest that, relative to female Republicans, female Democrats increased their attention to abortion post-*Dobbs*. Using pre-*Dobbs* statement volume to benchmark the substantive per-member effects, the model estimates suggest that the average female Democrat makes about 24 additional abortion statements per term after *Dobbs*, while the average female

[*] Recent work demonstrates that ChatGPT outperforms human coders on complex text-classification tasks, including identifying relevance, stance, topics, and framing (11).

[†] The Area Under the Curve (AUC) measures how well a model distinguishes between positive and negative labels; a value of 1.0 indicates perfect classification.

[‡] Since we are interested in congressional attention to abortion, we measure the volume of statements, not their policy direction or tone. Given that parties are internally united in their abortion policy stances (6), we suspect that most Republicans' statements favor restricting abortion access while Democrats' statements favor expanding it.

[§] Additional validation for the bigram dictionary classifier appears in the *SI Appendix*.

[¶] Although our DiD design does not include an untreated group (all legislators are treated by *Dobbs*), our design is still a valid DiD: we compare the pre–post change in abortion attention by party, which yields two differences (over time and between parties) and identifies whether Democrats' attention shifted more than Republicans' after *Dobbs* by gender (the Post-Dobbs × Democrat interaction). See SI Appendix for more details.

[‖] We omit committee fixed effects in the main text because our estimand is Congress-wide attention rather than committee-specific responses. To address potential selection into issue-relevant committees, the *SI Appendix* reports TWFE models with committee fixed effects; results are substantively unchanged.

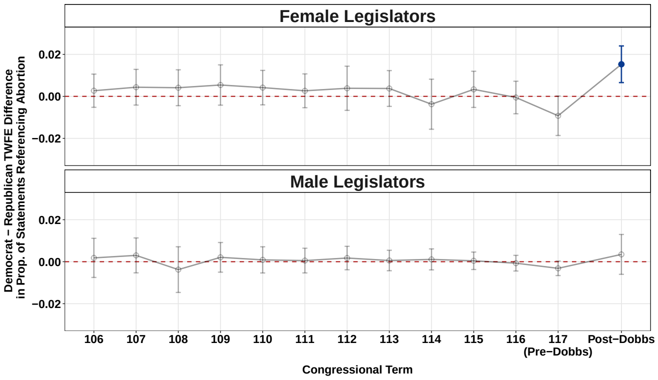

Fig. 2. Gender differences in partisan attention to abortion before and after *Dobbs*. Point estimates report the Democratic–Republican differences in the share of legislators' hearing statements referencing abortion, based on two-way fixed-effects (TWFE) models estimated separately for female (top) and male (bottom) legislators. Before *Dobbs*, partisan differences in abortion attention were near zero among both male and female legislators. After *Dobbs*, female Democrats exhibited a statistically significant increase in abortion attention, whereas male legislators showed no substantively meaningful or statistically significant change.

	Female Legislators		Male Legislators	
	Pre-Post	TWFE	Pre-Post	TWFE
Post-Dobbs	-0.009* (0.004)	-0.010* (0.004)	0.005* (0.003)	-0.004 (0.003)
Democrat	-0.008** (0.003)	-0.009* (0.004)	0.009*** (0.003)	-0.003** (0.001)
Post-Dobbs × Democrat	**0.022***** (0.005)	**0.008*** (0.004)	0.004 (0.005)	-0.000 (0.001)
Intercept	0.010*** (0.002)	0.010* (0.004)	0.01*** (0.001)	0.004 (0.003)
Observations	226	1117	562	4562
R^2	0.58	0.40	0.52	0.29
Legislator FE	Yes	Yes	Yes	Yes
Term FE	No	Yes	No	Yes

Table 1. Comparing Pre–Post and TWFE estimates of partisan gender gaps in abortion attention before and after *Dobbs*. OLS estimates report the interaction effect of party after *Dobbs* by gender based on pre–post and two-way fixed-effects (TWFE) difference-in-differences models. After *Dobbs*, female Democrats increased their attention to abortion by two percentage points, while effects among male legislators were not statistically significant. The model includes robust standard errors clustered by legislator (printed in parentheses). * $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$.

Republican makes about 4 fewer. At the party level, female Democrats collectively made nearly 300 additional abortion statements and female Republicans 100 fewer.[**] To benchmark the magnitude of this effect against other pivotal court decisions and major social movements, legislators' attention to abortion after *Dobbs* exceeds the party- and gender-based shifts in attention to LGBTQ and racial justice after *Obergefell* and Black Lives Matter, respectively (see *SI Appendix*). Across both model specifications subset to include only male legislators, the difference between Democrat and Republican legislators is not statistically significant.

We assess the durability of these effects by estimating separate pre–post DiD models for each post-*Dobbs* Congress: the latter half of the 117th, all of the 118th, and the portion of the 119th in our corpus. We then conduct Wald tests of (i) joint significance of all post-*Dobbs* interactions and (ii) equality of effects across the three post-*Dobbs* periods. Consistent with our results, the joint post-*Dobbs* effect is statistically significant for female legislators (Wald $\chi^2(3) = 12.88, p = 0.004$) and not statistically significant for male legislators ($\chi^2(3) = 4.01, p = 0.26$). Effects are not statistically distinguishable across the three post-*Dobbs* periods for both female and male legislators (Female Legislators: $\chi^2(2) = 0.45, p = 0.80$; Male Legislators: $\chi^2(2) = 3.93, p = 0.14$), indicating that the treatment effect among female Democrats persists through the 119th Congress without detectable decay and is absent among male legislators. Results are robust when using cosponsorship as an alternative measure of attention: after *Dobbs*, female Democrats cosponsored more abortion bills than female Republicans, with no comparable change among male legislators (see SI appendix).

Conclusions

Existing research finds that voters' and candidates' responses to *Dobbs* were primarily driven by party. We show that legislators' responses to *Dobbs* were shaped by both gender and party. Gendered representational considerations and partisan electoral incentives converged for female Democrats but clashed for female Republicans, placing female Democrats at the forefront of Congress's response.

Understanding whether and how legislators respond to *Dobbs* matters for several reasons. First, *Dobbs* is a case in which the Court moved policy away from majority opinion on abortion (1, 14). Whether (and which) legislators respond when the Court retrenches rights supported by most Americans speaks directly to Congress's capacity to represent public opinion. Second, our findings highlight the constraints descriptive representatives face when parties strongly structure behavior: when identity-based incentives and partisan goals conflict, responsiveness on identity-linked issues may be muted. Future work should examine how *Dobbs* reshaped abortion politics in state legislatures, which now hold primary policymaking authority on the issue.

[**] Although we use hearing statements to measure legislators' attention to abortion, we do not establish whether increased attention translates into substantive policy change. Increased attention to abortion in hearings may not correlate with effective lawmaking on the issue.

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Supporting Information for

Congressional Attention to Abortion After *Dobbs*

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This PDF file includes:

Supporting text
SI References

Supporting Information Text

Extended Materials and Methods. To examine how *Dobbs v. Jackson Women's Health Organization* shaped legislators' attention to and speech about abortion, we draw on an original dataset of U.S. House members' statements in congressional hearings before and after the decision. We then employ two complementary difference-in-differences (DiD) designs—a pre–post model and a two-way fixed effects (TWFE) panel model—to estimate the effect of *Dobbs* on partisan and gender differences in how members discuss abortion.

Data

Committee Hearing Transcripts and Statements. We analyze nearly 1.6 million committee hearing statements drawn from 17,408 hearings held in the U.S. House of Representatives across the 105th–119th Congresses. Transcripts for the 105th–117th Congresses were obtained from publicly available replication files associated with Park (2021, 2025) (1, 2). Transcripts for the 118th and 119th Congresses were scraped by the authors from `govinfo.gov` using the procedures described in Park (2021) (1). Scraping was completed on April 29, 2025; consequently, coverage for the 119th Congress includes hearings held on or before that date. Each hearing was parsed into individual statements (i.e., each unique time a legislator speaks). Witness statements were omitted. Statements were linked to legislators via GovTrack identification numbers, and legislator gender and party were subsequently merged in.

***New York Times* Coverage and Legislator' E-Newsletters.** We supplement our committee hearing transcripts and statements dataset with an additional dataset that captures monthly information flows surrounding abortion and the *Dobbs* decision. Specifically, we collect the total monthly count of all *New York Times* articles published between January 2021 and December 2022, as well as the monthly count of unique articles that include (i) the search string `abortion` and (ii) the search string `Dobbs v. Jackson`. Articles were identified using these string searches with monthly date parameters. These measures capture variation in national media attention to abortion over time. Second, we identify the total monthly count of Members of Congress' e-newsletter releases to their constituents using D.C. Inbox, a database that archives all congressional e-newsletters in real time (3). We apply the same search strings and monthly date parameters to identify abortion- and *Dobbs*-related e-newsletters. Because e-newsletters reflect messages that members choose to send directly to constituents, they provide a complementary indicator of when legislators engaged publicly with information about *Dobbs*. For each data source, we calculate a monthly proportion representing the share of all articles (or e-newsletters) that mention abortion or *Dobbs* during that month. The numerator is the sum of all articles or e-newsletters matching the search criteria, and the denominator is the total count of all articles or e-newsletters published in that month, regardless of content. In total, we collect 182,329 NYT articles and 25,680 legislators' newsletters. These two data sources allow us to situate legislators' behavior within the broader information environment and to assess the timing of information flows around both the leak and the Court's final decision. We implement this approach for the six months preceding the first major action in the case (certiorari granted) and the six months following the Court's final action (the official decision release).

Labeling Abortion Statements

Bigram Dictionary Classification of Abortion Statements. We use a bigram dictionary classifier to identify legislators' committee-hearing statements that reference abortion (4). We evaluated several text classification strategies (including large language models), but selected a transparent bigram dictionary classification because it most accurately labeled abortion statements and is easily auditable. First, we preprocessed the text by converting all words to lowercase, removing non-alphabetic characters, collapsing extra whitespace, and dropping stopwords, numbers, and punctuation. We then constructed a labeled training set by stratified sampling of 20,000 statements: 30% contained the term `" abortion,"` and the remaining 70% were drawn at random from the corpus to ensure sufficient positive cases for training and evaluation. We used GPT-5 to label the 20,000 statements in the training set as abortion-related (1) or not (0) under explicit guidance to tag only unambiguous references. We use GPT-5 to classify statements because recent work demonstrates that ChatGPT outperforms human coders on classification tasks (5). We held out 2,000 statements for out-of-sample validation. We randomly selected 2,000 statements from the 18,000 GPT-5 coded training statements and instructed human coders to label them. There was high classification agreement between GPT-5 and human coders (AUC = 0.94). In total, 2,678 of the 18,000 statements (17.4%) were labeled as abortion-related.

From the 2,678 positive statements, we extracted all bigrams (two-word sequences) yielding 81,103 bigram tokens. We then manually reviewed and removed bigrams that did not reliably indicate abortion, resulting in a dictionary of 1,829 abortion bigrams. The ten most frequent bigrams were `planned parenthood`, `pro life`, `roe wade`, `abortion ban`, `fund abortion`, `abortion service`, `hyde amendment`, `forced abortion`, `access abortion`, and `abortion clinic`. For classification, each corpus statement was coded as abortion-related if it (i) contained the token "abortion" or (ii) contained any abortion bigram; all other statements were coded as not abortion-related. The bigram classifer accurately predicted abortion statements in a validation set (that was held back prior to bigram selection) comparing GPT-5 and bigram-predicted classifications. Validation statistics include: Accuracy = 0.979; Precision = 0.904; Recall = 0.912; F1 = 0.907; AUC = 0.953; Cohen's Kappa = 0.9.

Our classifier identifies whether a statement references abortion; it does not code tone or policy position (e.g., pro-life vs. pro-choice). This design choice reflects two considerations. First, our outcome is legislators' attention to abortion regardless of valence (positive/negative), function (substantive/symbolic), or policy direction (pro-life/pro-choice). Second, given that parties are increasingly internally homogeneous on policy issues (6), especially highly partisan issues like abortion (7), we expect that Republican statements are framed as pro-life while Democratic statements are framed as pro-choice. An additional measure of policy direction would add little information. Therefore, because our analyses focus on attention rather than stance, we do not code tone or policy direction.

Validating Abortion Labels. To validate our abortion labels, we held out 2,000 statements in a validation set prior to model training (i.e., these statements did not contribute to the bigram dictionary). We then compared GPT-5 labels to bigram-based predictions. The classifier closely matched the GPT-5 labels: accuracy = 0.979; precision = 0.904; recall = 0.912; F1 = 0.907; AUC = 0.953; Cohen's $\kappa = 0.90$. These statistics indicate that (i) GPT-5 produced reliable training labels and (ii) the bigram classifier accurately identified abortion statements in the corpus. Importantly, because the curated dictionary contains only bigrams that explicitly reference abortion (each reviewed by the authors), statements are coded as abortion-related only when they contain a hand-validated abortion bigram—minimizing the risk of false positives. To illustrate the dictionary's specificity, we list below the 50 most frequently occurring abortion bigrams: `"plan parenthood" "pro life" "roe wade" "abort ban" "abort care" "reproduct health" "fund abort" "hyde amend" "abort servic" "birth abort" "perform abort" "partial birth" "provid abort" "abort provid" "gag rule" "forc abort" "access abort" "abort clinic" "ban abort" "pro choic" "global gag" "reproduct right" "seek abort" "pro abort" "unborn children" "anti abort" "fetal tissu" "reproduct healthcar" "termin pregnanc" "abort abort" "abort right" "late term" "term abort" "dobb decis" "cover abort" "overturn roe" "abort coverag" "select abort" "abort access" "includ abort" "life mother" "access reproduct" "pai abort" "restrict abort" "legal abort" "abort feder" "abort procedur" "protect life" "abort perform" "abort polici"`

Outcome Measures

We construct our outcome measure, *Attention to Abortion*, using all U.S. House committee hearing statements made between the 105th and 119th Congresses. We restrict the sample to include only members who served in at least one congressional term before and after *Dobbs*. Our primary outcome, *Attention to Abortion*, measures the proportion of legislators' hearing statements that reference abortion. Statements are classified as pre-*Dobbs* or post-*Dobbs* using May 2, 2022—the date of the draft opinion leak—as the treatment. We use two DiD specifications: a pre-post design and a two-way fixed effects (TWFE) design.

For the pre-post DiD design, we aggregate statements across all Congresses before and after the *Dobbs* leak, collapsing to a single pre- and post-period observation per legislator:

$$Y_{ip} = \frac{1}{N_{ip}} \sum_{s=1}^{N_{ip}} A_{ips}, \tag{1}$$

where $p \in \{\text{pre}, \text{post}\}$ indicates whether statement s occurred before or after the *Dobbs* threshold, and N_{ip} denotes the total number of hearing statements made by legislator i during that period. The *Attention to Abortion (Pre-Post Dobbs)* outcome variable measures the proportion of a legislator's hearing statements that reference abortion before and after the Dobb's decision leaked.

For the two-way fixed effects (TWFE) design, we compute abortion attention for each legislator i in each Congress t:

$$Y_{it} = \frac{1}{N_{it}} \sum_{s=1}^{N_{it}} A_{its}, \tag{2}$$

where $A_{its} = 1$ if statement s made by legislator i in Congress t references abortion and 0 otherwise, and N_{it} is the total number of hearing statements made by legislator i in Congress t. The *Attention to Abortion (by Term)* outcome variable measures the proportion of a legislator's hearing statements that reference abortion in each congressional term.

Each approach captures the same underlying construct—legislators' proportional attention to abortion before and after *Dobbs*—but with a different unit of analysis. The unit of analysis for the pre-post design is legislator-treatment date. The unit of analysis for the TWFE design is legislator-term.

Difference-in-Differences Design

We estimate the effect of *Dobbs v. Jackson Women's Health Organization* on legislators' abortion attention using two complementary difference-in-differences (DiD) specifications: a pre–post model with legislator fixed effects and a two-way fixed effects (TWFE) model with legislator and term fixed effects. Although *Dobbs* is a common shock affecting all legislators, our estimand is a standard DiD contrast: the change in abortion attention from pre to post *Dobbs* for Democrats relative to the corresponding change for Republicans (estimated separately by gender). In this setting, DiD identifies heterogeneous responses to a common shock by comparing pre-post changes across groups, rather than relying on a permanently untreated control group. This approach is used to study events where outcomes may shift differently across subgroups (e.g., (8)). Identification rests on the parallel-trends assumption that, absent *Dobbs*, abortion attention would have evolved similarly across parties by gender.

Sample inclusion: The universe of observations includes all members of the U.S. House of Representatives serving in the 105th–119th Congresses who made at least one committee hearing statement and served in at least one Congress both before and after *Dobbs*. This restriction ensures that estimates reflect within-legislator changes in speech rather than compositional changes in membership. Statements are coded as pre-*Dobbs* or post-*Dobbs* using May 2, 2022—the date of the draft opinion leak—as the dividing threshold.

Pre–post model: Our first specification averages the proportion of legislators' abortion statements before and after *Dobbs*. We then estimates a pre–post DiD model with a party and treatment date interaction, with samples disagregated by legislators' gender:

$$Y_{it} = \alpha + \beta_1(PostDobbs_t \times Democrat_i) + \mu_i + \varepsilon_{it}, \qquad [3]$$

where Y_{it} denotes the proportion of hearing statements referencing abortion made by legislator i in Congress t, $PostDobbs_t$ is an indicator equal to 1 for post-Dobbs Congresses and 0 otherwise, $Democrat_i$ indicates party affiliation, and where μ_i are legislator fixed effects that absorb all time-invariant characteristics of individual members. The coefficient β_1 captures the average change in abortion attention among Democrats relative to Republicans after *Dobbs*.

Two-way fixed effects (TWFE) model: We next estimate a two-way fixed effects (TWFE) panel model of the DiD to account for unobserved heterogeneity across legislators and time:

$$Y_{it} = \alpha + \beta_1(PostDobbs_t \times Democrat_i) + \mu_i + \lambda_t + \varepsilon_{it}, \qquad [4]$$

where μ_i are legislator fixed effects that absorb all time-invariant characteristics of individual members, and λ_t are Congress fixed effects that account for period-specific shocks common to all legislators.

All DiD models are estimated using ordinary least squares (OLS) regression with robust standard errors clustered by legislator. The coefficient β_1 represents the differential change in abortion attention among Democrats relative to Republicans following *Dobbs*. In both specifications, models are estimated separately by gender.

Identifying Assumptions

Difference-in-differences (DiD) designs rely on a central identifying assumption: that, in the absence of treatment, treated and control groups would have experienced parallel trends in the outcome being measured (9). When the assumption holds, any divergence in outcomes following the intervention can be attributed to the treatment rather than to preexisting or confounding differences in trends.

With regard to our analysis, the treatment is the *Dobbs* draft opinion leak, and the outcome is legislators' proportion of hearing statements referencing abortion. The DiD design compares changes in abortion attention before and after *Dobbs* between Democrats and Republicans, disaggregated by legislators' gender. Thus, the identifying assumption implies that prior to the leak, Democrats and Republicans would have exhibited similar rates of change in abortion attention from one Congress to the next, even if one party consistently devoted a greater overall share of attention to abortion. Put differently, abortion attention between groups could differ in level but should remain roughly stable across successive Congresses in the absence of treatment.

The primary concern for bias arises if abortion discourse was already diverging by party or gender before *Dobbs*—for example, if Democratic women were steadily increasing their attention to abortion in earlier congresses. To evaluate the credibility of the parallel trends assumption, we conduct a series of descriptive and model-based tests. These analyses examine whether levels of abortion attention from one Congress to the next were stable between parties and genders prior to *Dobbs*, whether trends in abortion discourse shifted after *Dobbs*, and whether our results are robust against placebo or alternative timing conditions. We include the following tests: an alternative treatment design, a randomization-in-time placebo test, median pre-*Dobbs* difference by party and gender, a 16-month pre-*Dobbs* event study, and a lagged fixed effects estimation. Across all tests, the parallel trends assumption holds.

Alternative Treatment Date Design. To empirically test whether there are effects for other potential treatment dates, we estimate the pre-/post- *Dobbs* DiD reported in text with two alternative treatment dates: 1) the Court's grant of certiorari (May 17, 2021) and 2) the day of the official Court decision (June 24, 2022). As expected, the party-based differences for each gender subgroup are substantively negligible and statistically insignificant when the treatment date corresponds to events that took place prior to the *Dobbs* leak (i.e., Certiorari). When the treatment date is assigned the day of the official decision, however, the observed results are consistent with the in-text results, reinforcing the fact that treatment effects initially occurred as a result of the leak—and were durable through the date of the decision. The results from the alternative specifications are presented below:

- May 17, 2021: SCOTUS grants certiorari

- **Female legislators :** $\boldsymbol{\beta = -0.001;\ p = 0.75}$
- **Male legislators :** $\boldsymbol{\beta = -0.00003;\ p = 0.97}$

- June 24, 2022: SCOTUS decides on *Dobbs v. Jackson Women's Health Organization*
  - **Female legislators :** $\boldsymbol{\beta = 0.02;\ p = 0.000}$
  - **Male legislators :** $\boldsymbol{\beta = 0.008;\ p = 0.17}$

Randomized Treatment Date Placebo Test. We conduct a randomization-in-time placebo test to assess whether randomly assigning the date of the *Dobbs* draft opinion leak produces a treatment effect. If *Dobbs* was the unique cause of the observed change in legislators' attention to abortion, randomly assigned treatment dates should produce null results. To test this logic, we subset the corpus of unique committee hearing transcripts to include only hearings with a recorded date (n = 17,357). We then simulate 1,500 placebo treatment dates, each randomly drawn from the set of observed hearing dates that occurred prior to the *Dobbs* draft opinion leak on May 2, 2022. For each simulated date, we reconstruct the pre/post indicator, calculating the proportion of abortion statements each legislator makes before and after the (fictional) leak dates. We then re-estimate the pre-post DiD model with legislator fixed effects by gender.

$$\text{share}_{i,\text{period}} \sim \textit{PostDobbs} \times \textit{Democrat} + \text{FE}_i,$$

Members are retained in the sample only if they have observations on both sides of the simulated cutoff. Across 1,500 simulations, 98.2% of placebo models for female legislators and 97.4% for male legislators yield $p > 0.05$ on the $\textit{PostDobbs} \times \textit{Democrat}$ interaction term. Put differently, almost none of the randomly assigned pre-*Dobbs* dates produce a treatment effect. This pattern strengthens our claim that the parallel trends assumption holds for our research design and that meaningful gender-based party difference emerge only after the *Dobbs* draft opinion leak.

Median Pre-*Dobbs* Differences in Abortion Attention by Gender and Party. Another way we test the parallel trends assumption is to examine differences in attention to abortion across congressional terms before *Dobbs*. For each Congress from the 105th through the 116th Congress (the last fully pre-treated congressional term), we calculate the median difference between Democratic and Republican legislators in the share of committee hearing statements that reference abortion. We evaluate whether there are partisan gaps in abortion attention for female and male legislators prior to *Dobbs*. Across the pre-*Dobbs* period, the median partisan difference in abortion attention remained near zero across both samples. The absence of term-level differences of party-based attention to abortion indicates that both female and male legislators followed parallel trends prior to treatment, consistent with the identifying assumption that any subsequent divergence reflects a treatment effect rather than evidence of pre-existing trends.

16 Month Event Study. To conduct a stricter test of the parallel trends assumption, we estimate a dynamic monthly DiD model that spans the 16 months preceeding the *Dobbs* leak (January 2021 - April 2022). More specifically, we estimate a regression model in which abortion attention is a function of monthly indicators for the pre-*Dobbs* period, interacting each with party, and including legislator fixed effects with robust standard errors clustered by legislator. Models are estimated separately by legislators' gender. Across both female and male legislators, all pre-*Dobbs* monthly coefficients are statistically indistinguishable from zero, and none exhibit any directional pattern. These findings indicate that even under this more sensitive, month-level specification, abortion attention among Democrats and Republicans evolved in parallel prior to *Dobbs*.

Lagged Two-Way Fixed Effects Estimation. To demonstrate the absence of treatment effects prior to *Dobbs*, we also leverage a two-way fixed effects (TWFE) estimator. The TWFE estimator allows us to estimate models with lagged treatment indicators, which serve as falsification tests for pre-treatment differences. If attention to abortion had already begun diverging at an unbalanced rate between Democrats and Republicans prior to *Dobbs*, these lagged coefficients would differ significantly from zero. We estimate separate TWFE models for female and male legislators, lagging the *Dobbs* treatment indicator by one, two, and three congressional terms. Each model includes legislator and term fixed effects. The lag coefficients capture the estimated "effect" of *Dobbs* when the post-treatment indicator is artificially imposed on earlier periods, allowing us to detect any premature divergence in each party's attention to abortion from one Congress to the next, by gender group, that might diagnose a violation of the parallel trends identifying assumption of our causal design. Across all specifications, the lagged coefficients are near zero and are not statistically significant. The absence of systematic lagged effects indicates that abortion attention evolved in parallel prior to *Dobbs*.

Alternative Model Specifications

In-Text Model Results & Alternative Specifications. The main models reported in-text show that Democratic women increase the share of their committee statements referencing abortion by roughly two percentage points more than Republican women after *Dobbs*, with no effect among men. As robustness checks, we estimate a series of pre-post DiD models that include various combinations of post-*Dobbs*, gender, and party indicators without subsetting by gender. A model with only a post-*Dobbs* indicator suggests that legislators, on average, make more abortion statements after the decision than before ($\boldsymbol{\beta = 0.007; p = 0.000}$). Models that include only a party indicator or gender indicator (while dropping legislator fixed effects) show no statistically significant difference in attention to abortion after *Dobbs* between Democrats and Republicans ($\boldsymbol{\beta = 0.002; p = 0.18}$) or male and female legislators ($\boldsymbol{\beta = 0.003; p = 0.06}$). Models that interact a post-*Dobbs* indicator with either a gender or a party indicator (while dropping legislator fixed effects) suggest that Democrats were more likely to mention abortion after *Dobbs* than Republicans ($\boldsymbol{\beta = 0.007; p = 0.04}$); however, no such difference exists between male and female legislators ($\boldsymbol{\beta = 0.001; p = 0.80}$). These results support our argument that legislators' responses were shaped by gender and party (not one or the other). Finally, a model with a triple interaction between post-*Dobbs*, gender, and party yields a coefficient of 0.017 ($\boldsymbol{p = 0.02}$), indicating that the post-*Dobbs* increase in the Democrat–Republican gap in abortion attention was larger among female legislators than among male legislators.

Committee Fixed Effects. In the main text, we do not include committee fixed effects because our interest is Congress-wide attention to abortion rather than committee–specific effects. One concern, however, is selection: legislators who wish to speak about abortion may sort into issue-relevant committees, creating more opportunities to make abortion statements. To address this alternative explanation, we re-estimate our TWFE model with member, term, and committee fixed effects at the legislator–committee–term level. The outcome variable is the proportion of a legislator's statements in a given committee–term that reference abortion. The independent variable is the interaction between a post-*Dobbs* indicator and a Democratic Party indicator, and we estimate models separately by gender. Results are robust. Among women, Democrats referenced abortion about one percentage point more than Republican women $\boldsymbol{(p = 0.05)}$. Among men, Democrats and Republicans did not differ $\boldsymbol{(\beta = 0.00,\ p = 0.80)}$. These patterns indicate that committee selection is unlikely to drive our main findings.

Alternative Outcome: Log Share of Abortion Attention. The outcome variable, attention to abortion, is right-skewed: most legislators make few abortion statements per period, while a minority make many. To ensure that this skewness does not drive our results, we apply a natural-log transformation to the dependent variables, $\boldsymbol{\log(y + 1)}$. Results are substantively unchanged across both specifications. In the pre–post model, Democratic women make about 2 percentage points more abortion statements than Republican women ($\boldsymbol{p = 0.000}$), while the party difference among men is not statistically significant ($\boldsymbol{p = 0.38}$). The TWFE DiD shows the same pattern (**Women**: $\boldsymbol{\beta = 0.008}$, $\boldsymbol{p = 0.02}$; **Men**: $\boldsymbol{\beta = -0.0003}$, $\boldsymbol{p = 0.72}$).

Frequency-Weighted DiD. To ensure our findings are not driven by differences in statement volume, we re-estimate both DiD specifications using frequency weights equal to each member–period's total number of statements, retaining legislator fixed effects and clustering standard errors by member. Results are substantively unchanged. In the pre–post model, Democratic women mention abortion 1.16 percentage points more than Republican women post-*Dobbs* ($\boldsymbol{p = 0.000}$), while the partisan gap among men is not statistically significant ($\boldsymbol{\beta = 0.001}$, $\boldsymbol{p = 0.43}$). The TWFE DiD yields the same pattern: Democratic women mention abortion 0.6 percentage points more than Republican women after *Dobbs* ($\boldsymbol{p = 0.02}$), with no significant party difference among men ($\boldsymbol{p = 0.40}$). These weighted estimates closely track the unweighted results, indicating that our conclusions are not driven by variation in total statement volume.

Durability of DiD Effects. We assess how long the increase in attention to abortion among Democratic women persists after *Dobbs* by splitting the post period into three bins: the second half of the 117th Congress (on/after May 2, 2022), the 118th, and the 119th. For male and female legislators, we estimate a two-way fixed-effects difference-in-differences model with legislator fixed effects and period dummies, using the share of a legislator's hearing statements that reference abortion before and after as the outcome. The independent variable is an interaction term between the post-treatment indicator and Democrat, which captures the change in the Democrat–Republican gap relative to the pre-*Dobbs* period. We then conduct Wald tests of (i) joint significance of all post-*Dobbs* interactions and (ii) equality of effects across the three post bins. For women, the joint post-*Dobbs* effect is statistically significant $\boldsymbol{(\text{Wald } \chi^2(3) = 8.95,\ p = 0.03)}$; for men it is not $\boldsymbol{(\chi^2(3) = 2.58,\ p = 0.46)}$. Effects are statistically indistinguishable across the three post bins for both women and men $\boldsymbol{(\text{Women: } \chi^2(2) = 0.25,\ p = 0.884;\ \text{Men: } \chi^2(2) = 2.23,\ p = 0.328)}$, indicating that the treatment effect among Democratic women persists through the 119th without detectable decay and is absent among men. Point estimates for women are roughly 1.5 to 2.3 percentage points across bins.

Contextualizing Magnitude of Effect

Our results indicate that female Democrats increased their attention to abortion by roughly two percentage points relative to female Republicans after *Dobbs*, with no change among men. Is a two percentage point shift in committee hearing attention substantively large? We contextualize the magnitude of our findings in two ways.

First, we compare the pre–post change in abortion attention around four other consequential abortion-policy events that occur in our time series: passage of the Partial-Birth Abortion Ban Act (November 5, 2003), *Gonzalez v. Carhart* (April 18, 2007), *Whole Woman's Health v. Hellerstedt* (June 27, 2016), and *June Medical Services, LLC v. Russo* (June 29, 2020). Using our measure of abortion statements, we compute the raw percentage-point change in abortion attention before and after each event by gender (women vs. men) and party (Democrats vs. Republicans). We do not estimate DiD models for each event because doing so would require the parallel-trends assumption to hold in each case; therefore, these results should be interpreted as descriptive. All four events produced smaller gender- and party-based changes in congressional attention to abortion than *Dobbs*. The largest increase in attention to abortion after the Partial-Birth Abortion Ban occurred among female legislators (0.17 percentage points), and the largest change after *Gonzalez v. Carhart* was also among female legislators (0.09 percentage points). For *Whole Woman's Health v. Hellerstedt* and *June Medical Services, LLC v. Russo*, the largest changes did not exceed 0.07 percentage points. In contrast, however, the largest raw pre–post change after *Dobbs* was 1.10 percentage points, indicating that *Dobbs* is the abortion event in our series that most strongly altered congressional attention.

Second, we benchmark the shift in congressional attention to abortion after *Dobbs* against two other consequential events: *Obergefell* (June 26, 2015), the Supreme Court case that granted marriage equality to same-sex couples, and the murder of George Floyd (May 25, 2020), which was one catalyst of the Black Lives Matter movement. We selected these events for two reasons: like *Dobbs*, *Obergefell* was a consequential Supreme Court decision that reshaped civil rights for a historically marginalized group; and Black Lives Matter was a major social movement that spurred congressional efforts to address police violence (e.g., the George Floyd Justice in Policing Act). While many other cases could be considered, the goal of this exercise is simply to contextualize the magnitude of Congress's attention shift after *Dobbs* relative to other recent events that garnered substantial congressional attention.

To do so, we constructed simple dictionaries of terms related to *Obergefell* and Black Lives Matter, and used them to code each statement as LGBTQ- or race-related. We then collapsed the data to a member-level pre–post event panel, so that each legislator contributes two observations: one before the event and one after. The primary dependent variables are the proportion of LGBTQ- or race-related statements in each period. We then compute the raw percentage-point change in attention before and after each event by gender and party. The resulting shifts are modest: the largest change after *Obergefell* is 0.07 percentage points, and the largest change after Black Lives Matter is 0.15 percentage points—both smaller than the shift in abortion attention we observe after *Dobbs*. This pattern suggests that *Dobbs* was associated with a large increase in congressional attention, even when compared to other salient, high-profile events.

Importantly, these benchmarks do not imply that *Obergefell* or Black Lives Matter were less important than *Dobbs*, nor that Congress devoted less overall effort to those issues through other channels (e.g., bill introduction or passage). We present these comparisons solely to help readers interpret the substantive magnitude of our estimates. Likewise, these results should not be interpreted as causal effects; they are descriptive pre–post trends intended to contextualize our findings alongside other major abortion-related and non-abortion-related events.

Obergefell Dictionary: `Obergefell, Marriage Equality, Same Sex Marriage, Gay, Lesbian, Sexual Orientation, Gay Marriage, LGBTQ`

Black Lives Matter Dictionary: `Black Lives Matter, Policy Brutality, Racial Justice, Systemic Racism, Police Violence, Defund the Police`

Alternative Dependent Variable: Cosponsorship of Abortion Bills

To assess whether our findings are robust to additional measures of issue attention, we examine legislators' cosponsorship of abortion bills. To do so, we collect data on legislators' cosponsorship decisions from the 111th–118th Congresses. We classify bills as abortion-related if the word "abortion" appears in the bill text. We then compute the proportion of abortion bills each legislator cosponsored before and after *Dobbs*.

Estimating a pre-post DiD model similar to the in-text specification, we find that female Democrats increased abortion-bill cosponsorship relative to female Republicans by 0.8 percentage points ($\boldsymbol{\beta = 0.008}$, $\boldsymbol{p = 0.006}$), with no statistically significant change among men ($\boldsymbol{\beta = 0.002}$, $\boldsymbol{p = 0.26}$). A triple interaction (Post-Dobbs $\times$ Democrat $\times$ Female) indicates that the post-*Dobbs* partisan shift is larger among women than among men ($\boldsymbol{\beta = 0.006}$, $\boldsymbol{p = 0.054}$).

Overall, these additional models show that the post-*Dobbs* gendered partisan shift is not limited to committee hearings; it also extends to cosponsorship behavior. Together, they indicate that *Dobbs* reshaped legislators' behavior at multiple decision points in the legislative process.

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